

Senate Joint Resolution No. 1—Select
Committee on Jobs and Economy

FILE NUMBER.....

SENATE JOINT RESOLUTION—Proposing to amend the Nevada
Constitution to enact various requirements relating to the
distribution and submission of mail ballots.

Legislative Counsel’s Digest:

The Nevada Constitution requires all elections by the people to be by ballot. (Nev. Const. Art. 2, § 5) The Nevada Constitution further entitles each voter who is a qualified elector and registered to vote to receive and cast a ballot that: (1) is written in a format that allows the clear identification of candidates; and (2) accurately records the voter’s preference in the selection of candidates. (Nev. Const. Art. 2, § 1A)

This joint resolution proposes to amend the Nevada Constitution to: (1) require a county clerk to send to each active registered voter in the county who is eligible to vote in an election a mail ballot; (2) prescribe, with certain exceptions, the time period during which the clerk must send the mail ballot; and (3) require the county clerk to send the mail ballot and certain additional material by certain means. This joint resolution further amends the Nevada Constitution to authorize a person to elect to not receive a mail ballot by submitting certain notice to the county clerk.

Existing law requires county clerks, for a primary election or general election, to establish a certain number of polling places for early voting by personal appearance and for voting in person on the day of the election. (NRS 293.2731, 293.3575) This joint resolution proposes to amend the Nevada Constitution to require any polling place that is used for early voting by personal appearance or for voting in person on the day of the election to accept the submission of mail ballots by voters while voting in person occurs. This joint resolution additionally proposes to amend the Nevada Constitution to require, during the 3 days immediately preceding any primary election or general election, each county clerk to establish a certain number of sites at which voters may return mail ballots. These sites must be available for at least 8 hours on each day and located at a polling place that is used for early voting by personal appearance or voting in person on the day of the election. Finally, this joint resolution amends the Nevada Constitution to authorize: (1) the Legislature to provide by law for increasing the required number of such sites; and (2) a county clerk to establish any additional number of such sites.

EXPLANATION – Matter in ***bolded italics*** is new; matter between brackets ~~omitted material~~ is material to be omitted.

RESOLVED BY THE SENATE AND ASSEMBLY OF THE STATE OF
NEVADA, JOINTLY, That a new section, designated Section 11, be
added to Article 2 of the Nevada Constitution to read as follows:

***Sec. 11. 1. The county clerk shall send to each active
registered voter in the county who is eligible to vote in an
election a mail ballot. Mail ballots must be sent:***

***(a) On or after the fifth Monday before the election but
not later than the fourth Monday before the election to
active registered voters who reside within the State; and***



(b) On or after the seventh Monday before the election but not later than the fifth Monday before the election to active registered voters who reside outside the State unless federal or state law requires mail ballots be sent earlier to active registered voters who reside outside the State.

2. If a person registers to vote or updates his or her voter registration information not later than 14 days before the election, the county clerk shall send a mail ballot to that person unless a mail ballot has been sent by the county clerk pursuant to subsection 1.

3. Notwithstanding the provisions of subsections 1 and 2, a county clerk shall allow a voter to elect not to receive a mail ballot by submitting to the county clerk a written notice in a form prescribed by the county clerk. The notice must be received by the county clerk not later than 60 days before the day of the election.

4. A mail ballot must include all offices, candidates and measures upon which the voter is entitled to vote at the election.

5. Except as otherwise required by federal or state law, the county clerk shall send to each active registered voter eligible to cast a vote but who has not elected under subsection 3 not to receive a mail ballot, by first-class mail or by any class of mail if the Official Election Mail logo or an equivalent mark created by the United States Postal Service is properly placed:

(a) A mail ballot;

(b) A return envelope;

(c) An envelope or sleeve into which the mail ballot is inserted to ensure its secrecy; and

(d) Instructions.

6. In sending a mail ballot to an active registered voter, the county clerk shall use an envelope that may not be forwarded to an address of the voter that is different from the address to which the mail ballot is mailed.

7. The return envelope must include postage prepaid by first-class mail if the active registered voter is within the boundaries of the United States, its territories or possessions or on a military base.

And be it further

RESOLVED, That a new section, designated Section 12, be added to Article 2 of the Nevada Constitution to read as follows:



Sec. 12. 1. Any polling place that is used for early voting by personal appearance or for voting in person on the day of the election must accept the submission of mail ballots by voters while voting in person occurs.

2. During the 3 days immediately preceding any primary or general election, each county clerk shall establish sites in accordance with subsection 3 at which voters may return mail ballots. Any site established pursuant to this subsection must be available for at least 8 hours on each day and located at a polling place that is used for early voting by personal appearance or voting in person on the day of the election.

3. For the purposes of subsection 2, a county clerk shall establish:

(a) In a county whose population is 700,000 or more, at least 10 sites which meet the requirements of subsection 2.

(b) In a county whose population is 100,000 or more but less than 700,000, at least 5 sites which meet the requirements of subsection 2.

(c) In a county whose population is less than 100,000, at least 1 site which meets the requirements of subsection 2.

4. A county clerk may, in addition to the sites established pursuant to this section, provide any additional number of sites which meet the requirements of subsection 2.

5. The Legislature may provide by law for increasing the required number of sites established pursuant to this section.

And be it further

RESOLVED, That this resolution becomes effective upon passage.

20 ~~~~~ 25



